

25LBCP00221 25LBCP00221

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 25LBCP00221 Hearing Date: September 3, 2026 Dept: S27

1. Background

Facts

Plaintiff, Mark Prebe filed this action against Defendant, Deutsche Bank National Trust Company on 5/23/25. Plaintiff's commencing document is a petition, and his operative pleading is his First Amended Petition, which he filed on 8/07/25. Plaintiff's FAP includes causes of action for violations of the Rosenthal Fair Debt Collection Practices Act, violation of the Fair Debt Collection Practices Act, violation of Regulation F, Cancellation of Void Instruments, and Declaratory Relief. The crux of the FAP is that Defendant is wrongfully asserting it is the trust with a beneficial interest in his mortgage, when it is not.

2. 1/22/26

Hearing on Defendant's Demurrer

The Court heard Defendant's demurrer to the FAP on 1/22/26. The Court found all causes of action in the FAP except the debt collection charges were barred by the doctrine of res judicata. The Court found the debt collection claims were barred because a trust deed beneficiary is not a debt collector for purposes of the FDCPA or Regulation F.

3. Post-Demurrer

Proceedings

The Court, on 1/22/26, ordered

Defendant to submit a proposed judgment for processing by 1/28/26 and indicated it would hold the proposed judgment for five days pending objections.

On 1/30/26, the Court processed the proposed order Defendant lodged with its demurrer. The order is captioned "ORDER SUSTAINING DEFENDANT...S DEMURRER...AND ENTRY OF JUDGMENT OF DISMISSAL." The order includes a statement that "IT IS FURTHER ORDERED that judgment of dismissal is hereby entered in favor of DBNTC and against Plaintiff."

4. Motion to Vacate Judgment

a. Parties' Positions

Plaintiff moves to vacate the judgment of dismissal entered against him. He moves pursuant to CCP §663, contending the action is a petition and not a complaint and therefore the Court should not have considered a demurrer to it in the first instance. He argues the ruling erroneously made fact-based determinations not solely on the pleadings. He argues res judicata does not apply and debt collector status cannot be determined on demurrer.

Defendant opposes. It argues there is no judgment to set aside in the first instance, and §663 is not the proper vehicle to attack a demurrer ruling. It argues the complaint clearly seeks the type of relief contemplated by a complaint, not a petition. It argues the ruling re: both res judicata and debt collector status was correct and need not be vacated.

b. Petition vs. Complaint

On 12/04/25, the Court heard and denied Defendant's motion to declare Plaintiff a vexatious litigant. The Court discussed, at length, the distinction between a complaint and a petition, and clarified that Plaintiff herein has attempted to style his request for relief as a petition, but in substance, it is a complaint. The Court incorporates its 12/04/25 analysis into this ruling by reference.

c. Judgment

Defendant argues no judgment has been entered, and therefore this motion is procedurally improper. Defendant was ordered to submit a proposed judgment of dismissal by 1/28/26. It has not, to date, done so. However, as noted above, on 1/30/26, the Court processed Defendant's proposed order sustaining the demurrer without leave to amend, which expressly indicated "judgment" was entered in Defendant's favor. The Court therefore finds the 1/30/26 order operates as a judgment of dismissal, such that the lack of a judgment does not preclude consideration of this motion to vacate judgment.

d. Propriety
of Using §663 to Attack a Demurrer Ruling

Defendant argues §663 is not the proper vehicle to attack a ruling on demurrer, citing *Payne v. Radar* (2008) 167 Cal.App.4th 1569 in support of its position. The Court has read *Payne*, specifically page 1575, and it clearly holds that a §663 motion does not lie after a ruling sustaining a demurrer without leave to amend. The motion is therefore summarily denied as there is no authority presented for the relief sought.

e. Notice

Defendant is ordered to give notice.